



STANDARD INSTRUCTIONS

CALL FOR TENDER

Ref. NG16274754/DRI/15

**Provision of Coiled Tubing and
Nitrogen Pumping Services for
OML 58, 2015 - 2018 Campaign**

April 2015

INSTRUCTIONS TO TENDERERS

**FOR THE PROVISION OF: Coiled Tubing and Nitrogen
Pumping Services for OML 58, 2015 - 2018 Campaign**

FOR

Future Contract: NG16274754/DRI/15

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1. DEFINITIONS

The following terms in the TENDER DOCUMENTS written in capital letters are defined as follows:

CALL FOR TENDER shall mean the tendering process of project outlined in *Article 2*, from the issuing of the invitation to TENDER until cancellation of process or final award of CONTRACT.

CLOSING DATE shall mean the date and time specified by COMPANY in the Cover Letter, which shall be the latest date and time when a TENDER may be accepted by COMPANY.

COMPANY ADDRESSEE shall mean COMPANY's recipients of pre TENDER clarifications and the TENDER as identified in *Article 3*.

INSTRUCTIONS TO TENDERER shall mean the present document governing the CALL FOR TENDER.

SPECIMEN CONTRACT shall mean the proposed contract, including its Appendices, which are part of the TENDER DOCUMENTS and the basis of the TENDER.

TENDER shall mean the TENDERER's offer to perform the SERVICES, and any subsequent revised offer/clarifications in response to COMPANY's request, which is submitted in accordance to the INSTRUCTIONS TO TENDERER.

TENDER DOCUMENTS shall mean the complete package of documents sent out by COMPANY to TENDERERS, which are listed in *Article 4.1* of this INSTRUCTIONS TO TENDERER.

TENDERER shall mean a professional service provider or group of service providers who have been invited to TENDER for SERVICES.

TENDER VALIDITY PERIOD shall mean the period specified in *Article 6.3* of the INSTRUCTIONS TO TENDERER with any possible extension thereof.

All other terms written in capital letters in the TENDER DOCUMENTS shall have the meaning given to them in the SPECIMEN CONTRACT.

2. OVERVIEW OF THE SERVICES

The present CALL FOR TENDER is related to the performance of **Provision of Coiled Tubing and Nitrogen Pumping Services for OML 58, 2015 - 2018 Campaign in Nigeria** as described in the SPECIMEN CONTRACT, in order for COMPANY to select a TENDERER who will be awarded the performance of the SERVICES.

3. ACKNOWLEDGEMENT

TENDERER shall, no later than seven (7) calendar days from the date of the reception of the TENDER DOCUMENTS, complete the Secrecy Declaration in the form of *Attachment 1* (see Article 4.2 below) and inform COMPANY in writing (Fax or Email) in the form of *Attachment 2* of his intent to submit a TENDER or not, to the following addressee(s):

COMPANY ADDRESSEE
The Deputy General Manager Contracts
Total E&P Nigeria LTD.,
Plot 25, Trans-Amadi Industrial Layout,
Port Harcourt.
NIGERIA
FAX: 234-84-238-953

- TENDERER shall state who will be the person in charge of the TENDER and indicate his contact information.
- If TENDERER decides not to TENDER, he shall promptly
 - return the TENDER DOCUMENTS marked “NO BID” to the COMPANY ADDRESSEE, and/or
 - confirm in writing to the COMPANY ADDRESSEE that the TENDER DOCUMENTS have been :
 - deleted in the case of electronic TENDER DOCUMENTS and/or
 - destroyed in case of hard copy documents.
- In the event that TENDERER decides to form or join in an association of companies (a “Consortium”), he shall, immediately on reaching his decision, notify COMPANY of such at the latest together with the acknowledgement of receipt as per *Attachment 2*.

4. CALL FOR TENDER CONDITIONS

4.1 Documents included in TENDER DOCUMENTS

- CALL FOR TENDER Cover Letter
- INSTRUCTIONS TO TENDERER
- SPECIMEN CONTRACT
- CONTRACT APPENDICES 1 - 3

4.2 Secrecy Declaration

The TENDER DOCUMENTS are confidential, contain proprietary information belonging to COMPANY and may only be reproduced or disclosed by TENDERER for the purpose of submitting his TENDER subject however to prior written permission of COMPANY and to same prior undertaking of confidentiality by any of the recipients. TENDERER shall fill in, execute and, together with the Acknowledgement as per *Article 3* above, submit to the COMPANY ADDRESSEE the signed secrecy declaration form as provided in *Attachment 1*.

The TENDER DOCUMENTS shall remain the property of COMPANY at all times.

4.3 Review of TENDER DOCUMENTS

TENDERER shall check and is responsible for the receipt of all TENDER DOCUMENTS sent by COMPANY. COMPANY reserves the right to modify or amend any part of the TENDER DOCUMENTS before the CLOSING DATE; such modifications or amendments shall be notified to all TENDERERS by means of a TENDER bulletin. TENDERER shall be given the opportunity to modify or amend any part of his TENDER in the event that he had already submitted his TENDER prior to such modification or amendment.

Any modifications and/or additional instructions issued by COMPANY before the CLOSING DATE shall be issued as addenda to the TENDER DOCUMENTS and be made a part thereof.

4.4 TENDERER’s Responsibility

4.4.1 TENDER Information

- TENDERER is required to peruse the TENDER DOCUMENTS and to obtain all information as he may require to enable him to submit his TENDER.
- No claims whatsoever will be accepted by COMPANY arising out of TENDERER’s failure to study the TENDER DOCUMENTS.
- On no circumstances will a TENDERER amend or change part or whole of the COMPANY document, this will lead to outright disqualification.

4.4.2 Knowledge of Local Conditions

TENDERER shall take into account any and all local conditions under which the SERVICES are to be performed, including laws and regulations in force, tax regimes, environmental issues and other work conditions.

TENDERER shall be deemed to have a full working knowledge of the site at which the work is to be performed including, where applicable, the prevailing climatic and sea conditions and, generally, be familiar with and have obtained all necessary information as to the data and contingencies and all other circumstances affecting the performance of the SERVICES and to have taken the same into account.

4.4.3 Clarifications and Notice

- Should TENDERER find any discrepancies or omissions in the TENDER DOCUMENTS, or have any enquiries regarding the TENDER DOCUMENTS, he shall immediately specify in writing such discrepancies, omissions or enquiries to the COMPANY ADDRESSEE and clarification(s) will be forwarded by return.
- TENDERER is allowed to request additional information or clarification(s) **ONLY** by e-mail to chukwumaoge.onunkwo@total.com and ijeoma.eboagwu@total.com. Such request(s) must be received by COMPANY at the latest seven (7) calendar days before the CLOSING DATE.
- Requests for clarification and their responses are communicated in writing to all TENDERERS simultaneously with the exception of those of confidential or of specific nature, providing that non communication does not favour nor penalize any bidder.
- All such request(s) for clarifications shall be submitted in the form provided in *Attachment 3*.

5. **COMPANY'S TENDERING POLICY**

The TENDER shall be in the English language.

5.1 Governing Law

- The governing law of this CALL FOR TENDER and the settlement procedure of any claim in connection thereof shall be in accordance with the governing law and the dispute settlement procedure specified in the SPECIMEN CONTRACT.
- TENDERER shall comply with all applicable governmental and local laws, regulations, practices, codes and requirements which might affect him for the purpose of the CALL FOR TENDER.

5.2 TENDER's Conditions

- The TENDER shall be prepared and submitted at TENDERER's sole cost and expense and in strict accordance with the INSTRUCTIONS TO TENDERER.
- COMPANY reserves the right to reject any TENDER which does not comply with the INSTRUCTIONS TO TENDERER, is incomplete or vague or is submitted after the CLOSING DATE.
- COMPANY shall be entitled to reject any and all TENDERS, to waive irregularities and formalities in its absolute discretion, and shall not be bound to accept the lowest priced TENDER or any TENDER. The choice made by COMPANY shall be final and TENDERER pledges not to challenge nor oppose such decision.

- COMPANY reserves its right to give precedence to TENDERER who submits an unconditional offer upon the availability of the resources to be provided for the performance of the SERVICES, and/or who submits a TENDER with minimal exceptions.
- TENDERER will not be considered as successful until he has received a formal written notice to this effect from an authorized representative of COMPANY.
No claim for compensation of any kind in respect of the preparation of the TENDER or any other costs shall be due to TENDERER in the event that COMPANY decides not to or is unable to proceed with the award of the CONTRACT.
- Unsuccessful TENDERER, on receipt of the notification by COMPANY of the non-acceptance of his TENDER, shall immediately:
 - return all TENDER DOCUMENTS to the COMPANY ADDRESSEE, and/or
 - confirm in writing to the COMPANY ADDRESSEE that the TENDER DOCUMENTS have been:
 - ✓ deleted (in the case of electronic TENDER DOCUMENTS) and/or
 - ✓ destroyed (in case of hard documents).
- COMPANY reference numbers NG16274754/DRI/15 must be clearly indicated on all letters, communications and other documents related thereto, including the TENDER.
- TENDERER shall be prepared to meet upon reasonable request of COMPANY at COMPANY ADDRESS, at TENDERER's cost, to discuss any aspect of his TENDER during the TENDER VALIDITY PERIOD.
- COMPANY shall make available to TENDERER at TENDERER's own cost and expense access to the WORKSITE to carry out survey(s) as may be required by TENDERER for the purpose of proposing his TENDER, with a minimum notice of seven (7) days.

5.3 COMPANY's Audits and Inspections

- COMPANY reserves the right to audit and/or inspect premises, facilities and any other resources of TENDERER and/or any of his proposed subcontractors and vendors and to carry out any relevant appraisals prior to entering into any contract.
- Before any CONTRACT award, TENDERER must be fully qualified by COMPANY to perform the required SERVICES, which involves, Technical and HSE on site audits of FIELD UNIT during operations. Participation in this CALL for TENDER does not imply that the TENDERER has been qualified by TOTAL.

6. SUBMISSION OF TENDER

TENDERER shall be deemed to have satisfied himself as to the correctness and sufficiency of his TENDER.

6.1 TENDER Composition

6.1.1 TENDER Packages

TENDER shall be composed of **ONE** sealed package containing the following:

- A sealed package, clearly marked "Contractual Package", containing a "hard" copy and an "electronic soft" copy (in readable format) as instructed in *Article 7.1*,
- A sealed package, clearly marked "Technical Package", containing a "hard" copy and an "electronic soft" copy (in readable format) as instructed in *Article 7.2*,
- A sealed package, clearly marked "HSE Package", containing a "hard" copy and an "electronic soft" copy (in readable format) as instructed in *Article 7.3*,

- A sealed package, clearly marked “NIGERIAN CONTENT Package”, containing a “hard” copy and an “electronic soft” copy (in readable format) as instructed in *Article 7.4*,

COMPANY’s preferred text format for TENDER is a word processing program; Microsoft Word files (“.doc”) being preferred. If TENDERER is unable to submit a Word file, TENDER may be submitted in other formats, for example as “.pdf” or “.rtf” files.

6.1.2 Labelling of Packages

Each Package shall be labelled using the form of labels provided in *Attachment 4*.

6.1.3 Prevailing Copy of TENDER

In case of discrepancy between the “hard” copy of TENDER and the “electronic” copy of TENDER, COMPANY will consider the “hard” copy version as prevailing over the “electronic” copy version.

6.2 TENDER Submission

6.2.1 TENDER shall be received as specified below:

- One sealed package containing, one (1) original copy of each package submitted to the COMPANY ADDRESSEE before the closing date shown on the NipeX platform
- One soft copy uploaded in NipeX before the closing date shown on the NipeX platform.

6.2.2 CLOSING DATE

CLOSING DATE is defined in the Cover Letter or NipeX platform.

Any TENDER received after the CLOSING DATE will not be considered by COMPANY. It is the responsibility of TENDERER to ensure that TENDER is received by COMPANY at the proper location(s).

The CLOSING DATE is firm and shall not be subject to changes unless TENDERER is formally notified by COMPANY of such.

If COMPANY decides to extend the CLOSING DATE, TENDERERS will have the possibility to reconsider all already submitted offers, which must be resubmitted before such CLOSING DATE.

6.3 TENDER VALIDITY PERIOD

The TENDER and all its content shall remain set and valid for the CALL FOR TENDER period.

7. CONTRACTUAL, TECHNICAL, HSE AND NIGERIAN CONTENT PACKAGES

7.1 CONTRACTUAL Package

Note: *No prices, remuneration or other financial compensation shall be indicated or submitted in the Contractual Package.*

The Contractual Package shall be composed of the following parts:

- | | | |
|---------------|---|---|
| Part 1 | – | TENDER Cover Letter |
| Part 2 | – | Form of TENDER |
| Part 3 | – | TENDERER’s information |
| Part 4 | – | Association of companies |
| Part 5 | – | Deed of Mutual Indemnity and Waiver of Recourse (Agreement) |
| Part 6 | – | Insurances |

- Part 7** – Bid Bond (Not applicable)
- Part 8** – Bank Guarantee Undertaking
- Part 9** – Parent Company Guarantee
- Part 10** – TENDERER tax information
- Part 11** – Exceptions to the Contractual aspects of the TENDER DOCUMENTS
- Part 12** – Additional contractual requirements of the TENDER

Details of the contents and structure of the above parts are explained in the following paragraphs:

Part 1 – TENDER Cover Letter

The TENDER Cover Letter shall be on TENDERER's letterhead, and shall be duly signed by an authorised official.

Part 2 - Form of TENDER

The Form of TENDER shall be submitted in the format as provided in *Attachment 5*. No TENDER will be accepted in any other form unless a prior written consent of COMPANY is obtained for an alternative form.

Part 3 - TENDERER's Information

General Information

TENDERER shall complete and submit the tables 1 to 6 of *Attachment 9*.

Business Ethics

TENDERER shall complete and submit the Due Diligence Questionnaire including the Notice of Disclosure provided for in the *table 5 of Attachment 9* which shall be signed by a duly authorised representative. The information provided therein shall be provided for the envisaged signatory contractor or, if more than one, each of the signatory contractors of the CONTRACT. TENDERER shall provide COMPANY with similar information from SUBCONTRACTORS that are subject to prior consent of COMPANY in accordance with sub-Article "1.6.2" of the SPECIMEN CONTRACT.

TENDERER shall acknowledge the content of the "TOTAL Code of Conduct" and undertake, in case of award, to comply with principles not less stringent than those contained in the "TOTAL Code of Conduct".

Part 4 – Association of Companies

TENDER submitted by a Consortium shall comply with the following requirements:

The TENDER shall be signed by all partners of the Consortium so as to be legally binding on each of them. The name and title of the signatory shall be shown in print underneath each signature.

TENDERER shall provide COMPANY with the following declaration and information:

- i. The interest of each of the partners in the Consortium.
- ii. The name of the Partner nominated for the purpose of the CALL FOR TENDER to act as representative of the Consortium and who in such capacity is authorized to incur liabilities and enter into contractual relationships with third parties, including settlement of any disputes thereunder, to receive and act upon instructions from COMPANY, to make and receive payments - all on behalf of the Consortium.
- iii. The declaration attached to the TENDER confirming that the TENDER takes precedence over anything which may be written in the said Partnership Agreement.

Should the future CONTRACT be awarded to a Consortium, it shall consequently:

- i. provide that members of the Consortium are jointly referred to as the envisaged signatory contractor who will be referred to as "CONTRACTOR" in the SPECIMEN CONTRACT and are jointly and severally bound towards COMPANY, and

ii. include the following provision:

“If CONTRACTOR is an association of companies, all such companies shall execute the CONTRACT and shall be jointly and severally liable under the CONTRACT; however without prejudice to the principle of joint and several liability of the companies composing CONTRACTOR, CONTRACTOR nominates **(name of company)** as sole agent of CONTRACTOR. Such nomination includes the power to fully represent CONTRACTOR, act on his behalf, receive any payment due under the CONTRACT, and settle any claim. Such nomination is irrevocable by CONTRACTOR for the duration of the CONTRACT, unless otherwise agreed upon by COMPANY prior to such revocation.”

Part 5 – Deed of Mutual Indemnity and Waiver of Recourse (Agreement)

TENDERER shall acknowledge that signature of such Waivers according to and in the forms presented in the SPECIMEN CONTRACT which shall be compulsory in case of CONTRACT award.

Part 6 – Insurances

TENDERER shall fill in the form presented in Appendices “Insurances” of the SPECIMEN CONTRACT and shall provide the status of his insurances.

Any lesser coverage than minimum requirements of COMPANY as per *sub-Article “6.1”* of SPECIMEN CONTRACT must be clearly evidenced.

Quoted rates and fees shall include the cost of all insurances required by COMPANY and also the cost for taking into account the provisions of Appendix - 5 “Remuneration” of the SPECIMEN CONTRACT.

Part 7 – Bid Bond (Not applicable)

Part 8 –Bank Guarantee Undertaking”

For Part 8 - Bank Guarantee and Part 9 - Parent Company Guarantee below, either or both of these guarantees will be mandatory in case of CONTRACT award.

TENDERER shall submit, together with his TENDER, a certificate / Letter of commitment to furnish the guarantee(s) when required by COMPANY.

In case of award of the CONTRACT, a Bank Guarantee as defined in *sub-Article “4.10”* of the SPECIMEN CONTRACT and complying with the model presented in the SPECIMEN CONTRACT may be required by COMPANY.

Part 9 - Parent Company Guarantee

In the event that the TENDERER is a subsidiary of another Company or Corporation, or is more than fifty percent (50%) owned by another Company or Corporation and is awarded the CONTRACT, a Parent Company Guarantee defined in *sub-Article “4.10.3”* of the SPECIMEN CONTRACT and complying with the model presented in the SPECIMEN CONTRACT may be required by COMPANY.

Part 10 – TENDERER Tax Information

TENDERER shall provide the following tax information:

- Name and country of registration of CONTRACTOR signing CONTRACT,
- TENDERER arrangement and exposure related to local taxes including current status,
- Name of his fiscal agent in the concerned country,
- If relevant, how and when CONTRACTOR has already been operating in the area(s) proposed in this CALL FOR TENDER.

Part 11 - Exceptions to the Contractual Aspects of TENDER DOCUMENTS

If TENDERER has exceptions to any part of the Contractual aspects of the TENDER DOCUMENTS, the exceptions shall be submitted on the form provided in *Attachment 10*,

The tables will be submitted to COMPANY in word format and all pages of the “hard” copy shall be initialled.

The alternative wording, the reasons for the exception and any added value introduced by the exceptions shall be included. TENDERER shall clearly state that his TENDER is in strict accordance with the TENDER DOCUMENTS requirements and contains no other exceptions than those listed as indicated above. If no exceptions are listed in the TENDER, the requirements of the TENDER DOCUMENTS shall be deemed accepted.

The TENDER shall make no reference to other terms and conditions which may or may not have been previously agreed with COMPANY and/or its affiliated entities unless corresponding changes are duly included in *Attachment 10* as exceptions to the SPECIMEN CONTRACT.

- Qualifications/Exceptions proposed by TENDERER must be done based on the SPECIMEN CONTRACT.
- In case of discrepancy between the exceptions filled in by the TENDERER in Attachments 10, 13, 15 or 16 and the exceptions mentioned in the SPECIMEN CONTRACT document, COMPANY will consider the qualified SPECIMEN CONTRACT document as prevailing over the TENDERER’s exceptions.

Part 12 – Additional contractual requirements of the TENDER

TENDERER shall submit the following:

- The SPECIMEN CONTRACT attached herewith, initialled on each page.
- The present INSTRUCTIONS TO TENDERER, initialled on each page.

7.2 TECHNICAL Package

Note 1: *No prices, remuneration or other financial compensation shall be indicated or submitted in the Technical package.*

Note 2: *If the printed Technical files requested to be submitted with the TENDER are in large quantities, TENDERER may submit only the Electronic Version (preferably a USB mass storage device or flash drive). However TENDERER must advise which files are submitted in electronic only format.*

The Technical Proposal shall be composed of the following parts:

- | | |
|---------------|---|
| Part 1 | – TENDER Cover Letter |
| Part 2 | – TENDERER’s workload and experience |
| Part 3 | – PERSONNEL |
| Part 4 | – SUBCONTRACTORS |
| Part 5 | – Quality Assurance and Quality Control |
| Part 6 | – Technical content |
| Part 7 | – Alternative technical proposals |
| Part 8 | - Exceptions to COMPANY Technical Exhibits / Appendices |

Details of the contents and structure of the above parts are explained in the following paragraphs:

Part 1 –TENDER Cover Letter

The TENDER Cover Letter shall be on TENDERER’s letterhead, and duly signed by an authorised official.

Part 2 – TENDERER’s Workload and Experience

TENDERER shall provide the following, duly completed:

- *Attachment 6* for current & potential workload.
- *Attachment 7* for past experience

Part 3 – PERSONNEL

TENDERER shall provide the following:

- General and services organization
 - TENDERER's general organisational chart (corporate and AFFILIATE);
 - Description of TENDERER's services oriented structure and management.
- CONTRACTOR PERSONNEL involved in the performance of the SERVICES
 - PERSONNEL management procedures including PERSONNEL rotation schedule, temporary versus permanent staff, skills assessment;
 - Statement that he and his SUBCONTRACTORS shall at all times ensure that working conditions shall not infringe human dignity principles or any other fundamental rights, as defined and protected by the UNO "Universal Declaration of Human Rights" and the International Labour Organization core principles.
 - A detailed organisation chart of the structure TENDERER intends to implement for the performance of the SERVICES, including SUBCONTRACTORS and Consortium partners if any;
 - The list of all the PERSONNEL proposed by TENDERER for the performance of the SERVICES, as per the SPECIMEN CONTRACT, complete with CVs and their intended involvement in the performance of the SERVICES;
 - Plan for the CONTRACTOR's PERSONNEL;
 - Availability of PERSONNEL for extra services.
- Training and development
 - All required training or certification of PERSONNEL for the performance of the SERVICES;
 - Training plan, matrix and schedule.
- "Local Content :

TENDERER shall prepare a detailed local content plan which covers as a minimum the following:

- Which positions in the charts provided as per Part 3 above, shall be occupied by Nigerian national employees from the COMMENCEMENT DATE
- For all technical positions occupied by nationals:
 - i. Recruitment process
 - ii. Details of training plan
 - iii. On the Job training process
- Replacement schedule per position,
- Human resources policy TENDERER intends to put in place to ensure stability of the national workforce and limit the turnover"
- Use of goods produced or manufactured in Nigeria and services provided by Nigerian registered companies. Community content is the part of the Local Content applied to the immediate vicinity of the WORKSITE.

Part 4 – SUBCONTRACTORS

TENDERER shall provide *Attachment 8* duly completed with the subcontracted part of the SERVICES.

Part 5 - Quality Assurance and Quality Control

TENDERER shall provide a description of TENDERER's Quality Management System. *Attachment 12* duly completed with associated documentation.

Part 6 – Technical Content

TENDERER shall describe his technical approach and concepts for the performance of SERVICES.

TENDERER shall also provide:

- A description of all TENDERER's facilities involved in the performance of the SERVICES;
- A detailed schedule for the performance of the SERVICES, including any estimated delays, if any, and mobilisation of PERSONNEL and equipment;
- Detailed descriptions and specifications of TENDERER's equipment;
- The earliest/latest availability of equipment;
- Any constraints of delivery of the EQUIPMENT and the time frame that those constraints may impose on the COMMENCEMENT DATE;
- A list of the main documentation to be supplied either by CONTRACTOR or COMPANY which is relevant for the performance of the SERVICES;
- Any mandatory Equipment certification;
- List of all patents and trademarks (or any other intellectual property rights) involved and/or necessary in the performance of the SERVICES and the justification of their use.
- Provide the information as required by *Attachment 11*.

Part 7 – Alternative Technical Proposals

If TENDERER wishes to submit proposal(s) which contain alternative technical solutions that TENDERER believes to be of interest, it shall be provided in Part 8.

In any case, TENDER shall always include one proposal based on the standard technical requirements described in the SPECIMEN CONTRACT.

Part 8 – Exceptions to the TENDER

If TENDERER has exceptions to any part of the Technical Exhibits Appendixes or attachments of the TENDER DOCUMENTS, the exceptions shall be submitted on the form provided in *Attachment 13*,

The tables will be submitted to COMPANY in word format and all pages of the "hard" copy shall be initialled.

The alternative wording, the reasons for the exception and any added value introduced by the exceptions shall be included. TENDERER shall clearly state that his TENDER is in strict accordance with the TENDER DOCUMENTS requirements and contains no other exceptions than those listed as indicated above. If no exceptions are listed in the TENDER, the requirements of the TENDER DOCUMENTS shall be deemed accepted.

The TENDER shall make no reference to other terms and conditions which may or may not have been previously agreed with COMPANY and/or its affiliated entities unless corresponding changes are duly included in *Attachment 13* as exceptions to the SPECIMEN CONTRACT.

7.3 HSE Package

Note 1: *No prices, remuneration or other financial compensation shall be indicated or submitted in the HSE package.*

Note 2: *If the printed HSE files requested to be submitted with the TENDER are in large quantities, TENDERER may submit only the Electronic Version. (preferably a USB mass storage device or flash drive). However TENDERER must advise which files are submitted in electronic only format.*

Note 3: **See attached HSE guidance for additional information**

The HSE Proposal shall be composed of the following parts:

- Part 1** – TENDER Cover Letter
- Part 2** – Acknowledgement of understanding of Appendix 8 of the specimen contract and any related Appendix
- Part 3** – Health, Safety and Environment (HSE) including Social and Security submission.
- Part 4** – Exceptions to COMPANY HSE Requirements.

Details of the contents and structure of the above parts are explained in the following paragraphs:

Part 1 –TENDER Cover Letter

The TENDER Cover Letter shall be on TENDERER's letterhead, and duly signed by an authorised official.

Part 2 – Acknowledgement of understanding of Appendix 8 of the specimen contract and any related Appendix

TENDERER shall acknowledge that he fully understands and will comply with Appendix 8 of the specimen contract

(Any exceptions and/or clarifications should be documented as per Part 4 above)

Part 3 – Health, Safety and Environment (HSE)

TENDERER shall complete the form in *Attachment 14* and provide the required HSE documentation. HSE includes "Respect of communities" and Security.

Part 4 - Exceptions / Clarification to COMPANY HSE Requirements

If TENDERER has exceptions to any part of the HSE requirements, the exceptions shall be submitted in the following format on the form provided in *Attachment 15*.

The tables will be submitted to COMPANY in word format and all pages of the "hard" copy shall be initialled.

The alternative wording, the reasons for the exception and any added value introduced by the exceptions shall be included. TENDERER shall clearly state that his TENDER is in strict accordance with the TENDER DOCUMENTS requirements and contains no other exceptions than those listed as indicated above. If no exceptions are listed in this section then the HSE requirements of the TENDER DOCUMENTS shall be deemed accepted.

The TENDER shall make no reference to other terms and conditions which may or may not have been previously agreed with COMPANY and/or its affiliated entities unless corresponding changes are duly included in *Attachment 15* as exceptions to the SPECIMEN CONTRACT.

7.4 NIGERIAN CONTENT SECTION Package

TEPNG is committed to the development of the Nigerian Oil and gas business consistent with the Nigerian Oil & Gas Industry Content Development Act 2010 (NOGICD Act or The Act) on Nigerian Content.

It is important that applicants familiarize themselves and comply with the provisions of the Nigerian Oil & Gas Industry Content Development Act otherwise referred to as The NOGICD Act in their Expressions of Interest, Pre-qualification, Tender Offer and in execution of contract(s) that may result from this advert.

As from the commencement of The Act, the minimum Nigerian Content in any project, service or product specification to be executed in the Nigerian oil and gas industry shall be consistent with the level set in the Schedule of The Act and any other targets as may be directed by the Nigerian Content Development and Monitoring Board (NCDMB or The Board).

Applicants shall comply with all the provisions of the NOGICD Act that relate to this contract but in particular comply with the minimum Nigerian Content % for the scopes which are covered in the Schedule of The Act and any other requirement that may arise from time to time not explicitly stated in this tender but which apply to the contract in complying the NOGICD Act.

The Work items and their associated costs will be clearly identified and described in the Commercial stage both within the pricing schedule and as a narrative outlining Nigerian Content commitments. Failure to fully comply with the Nigerian Content Act or demonstrate commitment to Nigerian Content.

Development Policy of the Nigerian Government shall result in disqualification from bidding this CFT.

As part of the technical tender submissions, Tenderer shall:

- a) Develop a Nigerian Content Execution Plan (NCEP), which shall explain the methodology of how contractor intends to comply with the requirements of The Act, The Nigerian Content Plan approved for this tender and how to achieve the set target(s) in the Schedule of Nigerian Oil & Gas Industry Content Development Act and any targets set by The Board. How it intends to give first consideration to services provided from within Nigeria, first consideration to goods manufactured in Nigeria and first considerations for employment and training of Nigerians in work programme. Tenderer's detailed plan to achieve/sustain the minimum percentage Nigerian Content level as prescribed by the applicable measurement metrics in the Schedule of the Nigerian Content Act 2010. **Complete form in attachment 18.**
- b) Demonstrate that entity (i.e. applicant or tenderer) is a Nigerian-registered company. Submit certified true copies of CAC forms 10, 02 & 07 (or its equivalent; CAC 2.3, 2.4, 2.5, etc) including company memorandum & article of association and other evidence of entity's incorporation, shareholding & ownership structure in Nigeria. Maximizing Nigerian Content is a key contract priority, therefore for foreign companies and multinationals in alliance with a local company, submit evidence that the local company is an indigenous company and the binding Agreement of the alliance duly signed Agreement by the CEO of both parties and stating the specific work scope to be performed by each member of the alliance. **Complete table in attachment 19.**
- c) Provide detailed description of the location of in-country committed facilities & infrastructure (assets, equipment, technical office, and administrative space, storage, workshop, assembly area, repair & maintenance, testing, laboratory, etc) in Nigeria to support this contract, evidence that 50% of all equipment deployed to work by multinational and international companies are owned by the local subsidiaries or submit a credible and verifiable plan towards compliance to these requirements including evidence of the OEM Nigerian Content Equipment Certification. Submit the detailed description of facilities and infrastructure in Nigeria with evidence of ownership and location in-country.
- d) Bidders are requested to execute an enforceable MOA with OGTA registered Local Training Service Provider for the provision of training services in specific technical disciplines involved in the project. Provide a project-specific training, man-hour budget, skill development and technology transfer plan for Nigerian personnel or indigenous business including evidence of past performance on training and development for Nigerians nationals & indigenous business. Plan for sponsorship of Nigerians to acquire competence and/or certification. Further development of local employees as professionals. Proposed training plan for Nigerians on the project including a brief training outline for OEM products, engineering, software & hardware, project management, procurement, construction, installation, start-up & commissioning, maintenance, testing and operations. **Complete table in attachment 20.**
- e) Provide evidence (personnel list and positions with organization chart to substantiate) of percentage of management that are Nigerian Nationals and the percentage of the total workforce that are Nigerians. **Complete table in attachment 21.** Submit tenderer's corporate organization's overall human resources structure (mgt, supervisors, senior & junior skilled officers, etc) identifying positions manned/occupied by Nigerian nationals with evidence of type of employment in-country.
- f) Provide description of how bidder would maximize the utilization of Nigerian resources (labour, materials and services) in the execution of this contract. Maximizing Nigerian Content is a key Project priority.

- g) Tenderer's to submit the project key personnel manning plan, the job positions and skill area in the overall job position/ key personnel matrix that would engage Nigerian nationals directly on this contract and those that will engage other nationals. **Complete table in attachment 21.**
- h) Tenderer's to submit binding memorandum of agreement (MOA) with Nigerian manufacturers of goods and finished products. Submit the list of goods, products, raw materials & chemicals and equipment of Nigerian origin to be procured & used in the execution of this contract. **Complete table in attachment 22.**
- i) Tenderer's to submit a plan for how you intend to give first consideration to services provided from within Nigeria with a list of work packages, 3rd party services and subcontracts that should be reserved for Nigerian indigenous contractors and those for Community Contractors including the list of services that will be provided by companies of Nigerian origin. **Complete table in attachment 23.**
- j) This tender is to be bided for exclusively by only Nigerian indigenous companies.
- k) Human Capital Development: - Tenderer's plan and strategy for Human capacity development training on this tender shall comply with; 10% of project hours man-hours (not less than 4,000 man-hours annually) as HCD training hours or 3% of total contract value whichever is greater. The number of trainees shall be determined in accordance with NCDMB HCD training guidelines. **Complete table in attachment 24.**
- l) Research and Development (R & D): - R&D shall be carried out on the contract under the auspices of NCDMB approved R&D cluster. Tenderer shall submit a signed MOA with any of the NCDMB approved research clusters indicating how the cluster will be used and the area of research relevant to the contract. Tenderer shall develop, SCOPE (list areas of research, linkage to industry, key drivers and expected outcome), provide name of research cluster and Nigerian location of centres, R&D duration, value of R&D expenditure as a percentage of contract value, Tenderer's R&D PLAN shall, (list purpose, NC targets, milestones and deliverables, performance reporting and period).
- m) Nigerian Content Development Fund: - All of CONTRACTOR's rates, fees and sums payable under CONTRACT are fully inclusive of the amounts required to be paid into the Nigerian content Development Fund as required under the provisions of the Nigerian Oil & Gas Industry Content Act of 22nd April 2010, ("the Act"), Article 104 thereof. CONTRACTOR agrees to COMPANY deducting and retaining the amount of one percent (1%) on each and every payment made by COMPANY to CONTRACTOR under the CONTRACT for remittance to the Nigerian Content Development Board in accordance with the Act. Payment of the retained amount to the Nigerian Content Development Board will be made by COMPANY. CONTRACTOR shall ensure that this amount is clearly identified on all invoices submitted. CONTRACTOR acknowledges that he has made due allowance for this deduction on all elements of the SERVICES.
- n) Nigerian Content definition: - Nigerian Content in the upstream sector of the oil and gas industry is defined as the quantum of composite value added to or created in the Nigerian economy through a deliberate utilisation of the Nigerian human and material resources and SERVICES in the exploration, development , exploitation, transportation and sale of Nigerian crude oil and gas resources so as to stimulate the development of indigenous companies, to encourage foreign investment and participation, without compromising quality, health, safety and environmental standards.
- o) Nigerian Content Equipment Certificate (NCEC): - CONTRACTOR are required to present the NCEC issued by Nigerian Content Development and Monitoring Board in respect of any component, spares, equipment, systems and packages to be used to perform the SERVICES. TENDERER is required to provide evidence of his intention and capability to comply with this requirement.
- p) Coiled Tubing and Nitrogen Pumping Services (NC Man-Hour) - TENDERER is required to explain and demonstrate how intends to achieve the 75% Manhour of the CONTRACT.

- q) Cleaning Chemical Components: - Tenderer shall procure the cleaning chemical components i.e. Solvent, Surfactant, Solvent + Surfactant and Cake Breaker Fluid, etc from vendors of Nigerian origin having the facilities for production and blending in-country.
- r) Research and Development (R&D): - R&D shall be carried out on the contract under the auspices of NCDMB approved R&D cluster. Tenderer shall submit a signed MOA with any of the NCDMB approved research clusters indicating how the cluster will be used and the area of research relevant to the contract. Tenderer shall develop, SCOPE (list areas of research, linkage to industry, key drivers and expected outcome), provide name of research cluster and Nigerian location of centres, R&D duration, value of R&D expenditure as a percentage of contract value. Tenderer's R&D PLAN shall, (list purpose, NC targets, milestones and deliverables, performance reporting and period).

Attachment 18 - Contractor's Nigerian Content Detailed Execution Plan & Summary

In addition to completing the form in attachment 18– Contractor's Nigerian Content Plan Summary, TENDERER shall develop and provide a Nigerian Content Execution Plan (NCEP), which shall explain the methodology of how contractor intends to comply with the requirements of The Act, The Nigerian Content Plan approved for this tender and how to achieve the set target(s) in the Schedule of Nigerian Oil & Gas Industry Content Development Act and any targets set by The Board. How it intends to give first consideration to services provided from within Nigeria, first consideration to goods manufactured in Nigeria and first considerations for employment and training of Nigerians in work programme. The NCEP shall consistent with the Act, demonstrate that Nigerian indigenous service companies have been given exclusive considerations to bid and execute work in land and swamp operating areas and their full utilization and engagement in exploration, seismic data processing, engineering design, reservoir studies, manufacturing, fabrication and provision of services. That the project or contract has given full and effective support to technology transfer by encouraging foreign and multinational companies to develop joint ventures and alliances with Nigerian service companies and suppliers. Tenderer's detailed plan to achieve/sustain the minimum percentage Nigerian Content level as prescribed by the applicable measurement metrics in the Schedule of the Nigerian Content Act 2010.

Attachment 19 - Nigerian Content Detailed information - Contractor Corporate Details

TENDERERS shall demonstrate that entity (i.e. applicant or Tenderer) is a Nigerian-registered company by submitting certified true copies of CAC forms 10, 02 & 07 (or its equivalent; CAC 2.3, 2.4, 2.5, etc) including company memorandum & article of association and other evidence of entity's incorporation, shareholding & ownership structure in Nigeria.

Maximizing Nigerian Content is a key contract priority, therefore for foreign companies and multinationals in alliance with a local company, submit evidence that the local company is an indigenous company and the binding Agreement of the alliance duly signed Agreement by the CEO of both parties and stating the specific work scope to be performed by each member of the alliance.

Provide detailed description of the location of in-country committed facilities & infrastructure (assets, equipment, technical office, and administrative space, storage, workshop, assembly area, repair & maintenance, testing, laboratory, etc) in Nigeria to support this contract, evidence that 50% of all equipment deployed to work by multinational and international companies are owned by the local subsidiaries or submit a credible and verifiable plan towards compliance to these requirements including evidence of the OEM Nigerian Content Equipment Certification.

Submit the detailed description of facilities and infrastructure in Nigeria with evidence of ownership and location in-country.

8. TENDER EVALUATION AND NEGOTIATION PROCESS

TENDERER may be invited to clarify his TENDER at COMPANY's convenience. All clarifications shall be stated in writing.

TENDERER may be invited to revise his TENDER if needed as a result of the clarifications.

The TENDERS submitted, should strictly comply with instructions provided in TENDER DOCUMENTS. TENDERS submitted in manner not requested by the TENDER DOCUMENTS as described in Article 4.1, may not be accepted by COMPANY.

The final acceptance of the successful TENDERER shall be subject to satisfactory results of any inspections/verifications by COMPANY.

Attachment 1 - SECRECY DECLARATION

To COMPANY ADDRESSEE(s)

Subject: **Secrecy declaration related to the CALL FOR TENDER ref. NG16274754/DRI/15 issued by Total E&P Nigeria for the performance of Coiled Tubing and Nitrogen Pumping Services**

Dear Sirs,

We, the undersigned, in consideration of the receipt of the TENDER DOCUMENTS referenced n°“.....” related to the performance of **Coiled Tubing and Nitrogen Pumping Services**, hereby declare that:

1. We shall at no time, without the prior written consent of **Total E&P Nigeria**, disclose to any third party confidential information (*Article 4.2* of the present TENDER DOCUMENTS and Article “*Confidentiality*” of the SPECIMEN CONTRACT).

with the exception of information:

- a) which at the time of the disclosure was already common knowledge,
- b) which subsequent to the disclosure becomes common knowledge through no fault of our part,
- c) which prior to the disclosure was already in our lawful possession,
- d) which is disclosed to us without restriction.
- e) which has been disclosed following a court or official request after previous information to COMPANY

2. We shall not use such confidential information for any other purpose than the preparation and submission of our TENDER.

3. We hereby acknowledge that all property and title to such confidential information shall remain with Total E&P **Nigeria**.

4. We shall only convey such confidential information to such person or persons (excluding unannounced partners or subcontractors) as shall be necessary for the preparation of our TENDER and shall bind such person or persons to observe the terms of this secrecy declaration.

5. We shall not convey to any company, corporation nor any partner or subcontractor, information from the TENDER DOCUMENTS without first having obtained the formal approval by COMPANY to cooperate with such a partner or subcontractor and having him/them sign individual secrecy declarations prior to being introduced to the TENDER DOCUMENTS.

6. In the event that the SERVICES will not be awarded to us and upon receipt by us of your notification to that effect, we shall promptly return the full set of TENDER DOCUMENTS to you.

7. This secrecy declaration shall be effective on the date when the TENDER DOCUMENTS are supplied to us.

8. This declaration shall be governed by the laws of Nigeria.

Accepted and agreed upon for and on behalf of [REDACTED]

Name (duly authorised):

Title:

Signature:

Date:

TENDERER's Stamp:

Attachment 2 - FORM OF ACKNOWLEDGEMENT OF RECEIPT

<present text to be filled in or deleted by TENDERER when document issued >

To COMPANY ADDRESSEE

Subject: **Acknowledgment of Receipt of the CALL FOR TENDER ref. NG16274754/DRI/15
Issued by Total E&P Nigeria for the performance of Coiled Tubing and Nitrogen Pumping
Services**

Dear Sirs,

We hereby confirm we are in receipt of your CALL FOR TENDER referenced NG16274754/DRI/15 related to the performance of Coiled Tubing and Nitrogen Pumping Services and we hereby declare:

- a) we acknowledge receipt of the "TOTAL Code of Conduct",
- b) we understand that Total E&P **Nigeria** is not bound to accept the lowest priced TENDER or any TENDER, nor give any reasons for the eventual rejection of our TENDER,
- c) in the event that our TENDER is accepted, we understand that we will have to enter into a formal agreement with Total E&P **Nigeria** on the basis of the SPECIMEN CONTRACT herein included in TENDER DOCUMENTS,
- d) **"we will (*) will not"** submit our TENDER for these SERVICES on or before your specified CLOSING DATE,
- e) our company **is** registered in **.....**
place : **.....**
registration number: **.....**
kind of entity : **.....**
branch : **.....**
entity name : **.....**
- f) our reference for this project is: **.....**
and the person responsible for this project within our organisation is:
name : **.....**
title : **.....**
phone : **.....** switchboard : **.....**
fax : **.....**
email : **.....**
Yours faithfully,
Company : **.....**
signed by **.....**
position : **.....**
date : **.....**

N.B (*) means "delete where appropriate" and "....." means "to be filled" ; present comment to be deleted when issuing Acknowledgement of Receipt

Attachment 3 – FORM FOR SUBMISSION OF CLARIFICATIONS

<present text to be filled in or deleted by TENDERER when document issued >

Request For Clarification “ ” SERVICES CALL FOR TENDER ref. “ ”	Nº: ...	Rev : 0
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Subject :

TENDERER REQUEST		Date :	
By the present Request For Clarification N°... , TENDERER			
Impact on cost : No ☐ Yes ☐		Impact on planning: No ☐ Yes ☐	
Enclosures : No ☐ Yes ☐		If 'Yes' Number of attached pages :	

COMPANY ANSWER	Date :
Enclosures : No : ☐ Yes ☐ If ‘Yes’ Number of attached pages :	

Attachment 4 – FORM OF LABELS

First COMPANY ADDRESSEE

SEALED TENDER - OPENING FORBIDDEN WITHOUT AUTHORIZATION	
(CONTRACTUAL)*(TECHNICAL)*(HSE) PACKAGE	
Total E&P Nigeria	
Attention: xxxxxxxxx	
Address	
City	
Country	
CALL FOR TENDER REF:	“ ” for “ ” SERVICES
TENDERER’S NAME:	

*Delete as necessary

Second COMPANY ADDRESSEE

SEALED TENDER - OPENING FORBIDDEN WITHOUT AUTHORIZATION	
(CONTRACTUAL)*(TECHNICAL)*(HSE) PACKAGE	
Total E&P xxxxxxxxx	
Attention: xxxxxxxxx	
Address	
City	
Country	
CALL FOR TENDER REF:	“ ” for “ ” SERVICES
TENDERER’S NAME:	

*Delete as necessary

Attachment 5 - FORM OF TENDER

(To be submitted in Contractual Package)

"present italic text to be deleted by TENDERER when document issued"

To COMPANY ADDRESSEE(s)

Dear Sirs,

1 - Having examined your TENDER DOCUMENTS, i.e.:

- ❖ CALL FOR TENDER Cover Letter
- ❖ INSTRUCTIONS TO TENDERER
- ❖ SPECIMEN CONTRACT
- ❖ CONTRACT APPENDICES 1 - 3

and considering our TENDER, we undertake to perform SERVICES under the obligations described in SPECIMEN CONTRACT, all in accordance with the terms and conditions set forth in TENDER DOCUMENTS.

2 - We acknowledge receipt of the following addenda to TENDER DOCUMENTS issued by COMPANY during the period of the present CALL FOR TENDER:

❖ **11**

❖ **11**

and we have taken the changes contained therein into account in our TENDER.

3 - We agree to keep our TENDER open for a period of the CALL FOR TENDER and it shall remain binding upon us and may be accepted by COMPANY at any time before the end of the CALL FOR TENDER.

4 – We agree to keep the Commercial part of TENDER unchanged during the CALL FOR TENDER Period. If EQUIPMENT has to be changed prior to commencement of SERVICES, we guarantee the equal service quality or better at prices, rates and fees equal or less than the ones contained in the Commercial part of TENDER - Not Applicable at this stage.

5 - Should our TENDER be accepted, within the CALL FOR TENDER period, we agree to enter into a formal contract to perform the SERVICES in accordance with the INSTRUCTIONS TO TENDERER and according to the terms and conditions of the SPECIMEN CONTRACT.

6 - We understand that COMPANY is not bound to accept the lowest priced TENDER or any tender you may receive or to give any reason or explanation for rejection of any tender. We agree that your decision shall not be contested nor opposed by us, and that the submission of our TENDER and possible subsequent discussions does not involve COMPANY incurring any costs whatsoever.

Dated the day of

Signature

in the capacity of

duly authorised to sign this TENDER for and on behalf of:

Witness:

Position:

Address:

Attachment 6 – CURRENT & POTENTIAL WORKLOAD

(To be submitted in Technical Package)

Current Workload

Client/ Project/ Nature of services	Progress %	Contract Value MUSD	Type of Activity (*)	Peak Manpower	Role	Award Date (MM/YY/YY)	Planned Completion Date (MM/YY/YY)

Type of Activity (*), specify:

Potential Workload

Client / Project / Nature of services	TOTAL (*) YES/NO	Type of Activity (*)	Peak Manpower	Role	Planned Award Date (MM/YY/YY)	Planned Completion Date (MM/YY/YY)

Type of Activity (*), specify:

Attachment 7 - PAST EXPERIENCE
(To be submitted in Technical Package)

Customer	Designation of the work/ service	Location	Award Date (MM/YY/YY)	Completion Date (MM/YY/YY)	Contract Value MUSD	Peak Manpower	Role *	JV Partners (if relevant)	Major SUBCONTRACTORS (if relevant)
Contracts with TOTAL group (Exploration & Production subsidiaries and other areas of operations shall be distinguished)									
Contracts with other companies involved in Oil & Gas activities (Various countries shall be highlighted)									
Contracts with other companies (activities outside Oil & Gas)									

Role (*) = Specify: MAIN CONTRACTOR, partner of JV, SUBCONTRACTORS

In addition to the information requested here above, TENDERER shall also provide a summary of the work/service performed.

Attachment 8 – SUBCONTRACTING
(To be submitted in Technical Package)

Service to be subcontracted	SUBCONTRACTOR name (*)	Number of positions as applicable

(*) For each of the SUBCONTRACTORS detailed specific information shall be provided (as per Part 7 of the Technical Proposal content with addition of complete address, No. Tel, fax, e-mail, contact, etc.....)

Attachment 9 – TENDERER’S GENERAL, LEGAL AND FINANCIAL INFORMATION
(To be submitted in Contractual Package)

TABLE 1
SPLIT OF RESPONSIBILITIES / ORGANISATION

1) General

Will the SERVICES be performed by TENDERER with his own resources only? Yes ☐ No ☐

If no, the TENDERER shall indicate how the SERVICES will be performed:

Location of main office:

2) Split of responsibilities (if applicable and known)

	NAME	OFFICE LOCATION	SERVICES-SCOPE RESPONSIBILITY
TENDERER and Consortium Partners			
Major SUBCONTRACTORS			

3) Documents to be provided:

-  Partnership Agreement (if any)
-  Sponsor’s declaration (if any)

TABLE 2
TENDERER'S GENERAL INFORMATION

1) CONTACT FOR ENQUIRIES

Name of contracting company	
TENDERER's address for communications and notices	
Telephone number	
Fax number	
Country of registration	
Registration number (DUNS N°)	
Class of company (A/S, Ltd, sa. ...)	
Detailed address of bases, offices, workshops ,, in the country	
Registered office address	

2) CONTACT FOR ENQUIRIES

Name	
Title	
Telephone number	
Fax number	
Address	

3) EMPOWERED REPRESENTATIVE (FOR SIGNATORIES OF FORMAL DOCUMENTS OF THE CALL FOR TENDER OR POSSIBLE FUTURE CONTRACT)

Name	
Title	
Telephone / Fax numbers	
Address	

4) TAX INFORMATION (PLEASE FILL IN ANY RELEVANT INFORMATION)

5) DOCUMENTS TO BE PROVIDED:

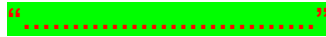
Registration certificate.

TABLE 3
TENDERER'S CORPORATE STRUCTURE

1) PARENT COMPANIES AND OWNERSHIP

PARENT COMPANY	REGISTERED LOCATION	SHARE %

ULTIMATE PARENT COMPANY:



2) ASSOCIATED / AFFILIATED COMPANIES

COMPANY NAME	ASSOCIATE / AFFILIATE	SHARE %

3) DOCUMENTS TO BE PROVIDED:

-  Company corporate and contracting organisation.
-  Company corporate and contracting general presentation brochure.

TABLE 4
FINANCIAL INFORMATION

1) CAPITAL & TURNOVER

Maximum Authorised Capital				
Paid-Up Capital				
		Global	Part of SERVICES similar to this ITT	Profit / Loss
Annual turnover of the TENDERER for each of the last three years (General Maintenance activities)	Y-3			
	Y-2			
	Y-1			

2) BANKERS, EXTERNAL FINANCIAL AUDITORS & <<DEED OF>> BANK GUARANTEE

	Name	Address
Main Bankers		
External Auditors		
First class international banks proposed for providing guarantee for this project		

Name bankers and auditors to be approached for references:

3) DOCUMENTS TO BE PROVIDED:

- 📄 Certified annual reports for the last three fiscal years.
- 📄 Certified audit reports.
- 📄 Schedule giving monthly average conversion rate in USD over the past three years when national currency is used in the above table.
- 📄 Documents giving references to current/proposed financing scheme.

TABLE 5
DUE DILIGENCE QUESTIONNAIRE

Name of the TENDERER: _____

With regard to the prevention of corruption under applicable anti-bribery laws, Total E&P “Nigeria” (“TEPNG”) needs the following information to assess the appropriateness of TEPNG’s entering into a business relationship with your company in relation to the Coiled Tubing and Nitrogen Pumping Services. Your cooperation in completing this questionnaire is greatly appreciated. Please attach additional sheets of paper for any answer requiring more space than is available in this questionnaire as well as any supporting documentation.

- 1 Full name and address of the responding company (which sometimes is referred to in the questions that follow as “your company”):**

Name: _____

Address: _____

Telephone: _____

Fax: _____

Email: _____

- 2 Year established:**

- 3 Registration: please, provide a copy of your registration form.**

- 4 Type of organization (sole proprietorship, partnership, corporation, etc.) and place of organization and/or registration:**

- 5 Number of permanent employees:**

- 6 Please describe the current business activities of your company:**

- 7 Please list, as references, the names and addresses of some companies for which your company is currently providing or has provided in the past five years, services, products, work, as the case may be.**

-
-
- 8 If the shares of your company are traded on a stock exchange, please identify such stock exchange.
-

- 9 Please provide the names of all direct or indirect owners of your company together with their ownership percentages (if the shares of your company are traded on a stock exchange, you only need to identify shareholders holding more than a 5% equity interest). If any of such owners is a company, please provide the names of the ultimate beneficial owner(s) and any intermediate entities or persons owning an interest in that company; for sake of clarity, you may use a chart describing the pertinent corporate structure.

Name	Ownership Percentage

- 10 Please list the names, nationalities and countries of residence of all officers and directors of your company.

Name, Nationality and Country of Residence	Position (officer, director)

- 11 Please provide the name and position of the person(s) who will be principally responsible for the relationship with TEPNG.

Name	Position (officer, director)

--	--

12 Are any of the following individuals a Public Official or a Close Family Member of a Public Official (as defined at the end of this questionnaire):

- Any director, officer or direct or indirect owner (if the shares of your company are traded on a stock exchange, you need to identify only shareholders having more than a 5% equity interest of your company)?

ANSWER: Yes ____ **No** ____

- Any agent of or consultant to your company?

ANSWER: Yes ____ **No** ____

- Any close relative (a husband/spouse or partner, one of his/her children, siblings or parents; the husband/spouse or partner of his/her children or siblings; or any household member) of any owner, officer or director of your company or of any agent or consultant to your company?

ANSWER: Yes ____ **No** ____

If "Yes", please identify all such individuals, their position and the corresponding government, agencies or organizations.

Name	Position in / Relationship to Your Company	Position in Government / Agency / Organization / Political Party

13 Will or may any Public Official or a Close Family Member of a Public Official receive a pecuniary benefit if TEPNG executes a contract with your company?

ANSWER: Yes ____ **No** ____

If "Yes", please identify the Public Official or a Close Family Member of a Public Official and describe the benefit that he or she will or may receive.

14 Describe the policies, procedures and other actions that your company has adopted and implemented to prevent bribery and other forms of corruption, in particular the bribery of Public Officials. Please, provide relevant documents.

- 15 Has your company or any officers, directors or owners of your company been a target of a criminal or civil investigation or proceeding during the past five years involving allegations relating to bribery, to misleading record keeping or to financial control deficiencies?**

ANSWER: Yes ____ No ____

If "Yes", please describe the allegations that were made, how the allegations were resolved or, if not resolved, the current status of the investigation or proceeding (attach additional pages as needed).

- 16 If applicable, please provide the full name(s) of any subcontractor(s) that your company would use in providing services to TEPNG and state:**

- a) which of such subcontractor(s) may be dealing with Public Officials,
- b) which are owned directly or indirectly in whole or in part by Public Officials or a Close Family Member of a Public Official,
- c) which have officers or directors who are Public Officials or a Close Family Member of a Public Official.

Name	Position in / Relationship to sub-contractor	Position in Government / Agency / Organization / Political Party

- 17 Definitions:**

"Public Official" means an elected or appointed official, employee or agent of any national, regional or local government/state or department, agency or instrumentality of any such government/state or any

enterprise in which such a government/state owns, directly or indirectly, a majority or controlling interest; an official of a political party; a candidate for public office; and any official, employee or agent of any public international organization.

“Close Family Member of a Public Official” means a husband/spouse or partner, one of his/her children, siblings or parents; the husband/spouse or partner of his/her children or siblings; or any household member.

18 Notice of Disclosure:

The information disclosed herein is collected by TEPNG considering its potential business relationship with your company. Any failure to provide complete answers to all the questions could delay or exclude your company from this process. Further, the provision of incorrect or misleading information may prevent our establishing a business relationship with your firm.

TEPNG will use such information, and may share it with other Affiliates (as defined hereafter) and their co-venturers, as well as their concerned Affiliates, and/or designated anti-corruption consultants or experts, in order to identify any possible exposure under any applicable anti-bribery laws.

TEPNG, as well as any Affiliate, receiving and processing this information is expected to do so for the purpose described here-above and they will protect such data consistently with applicable policies and laws. In consideration thereof, any person referred to in such data has the right to access and/or have rectified any incorrect information related to him/her by addressing the request to ***[insert the name of your business entity]***..

By signing this document, the undersigned, being duly authorized to respond to this questionnaire:

- a) declares that he/she has, or has obtained from the relevant person, the proper authority and right to disclose such information;
- b) consents to the processing of such information for the purpose described in this notice;
- c) acknowledges that the processing of such information may be conducted by a third party on behalf of Total or may occur in another country than the country of disclosure;
- d) represents that the information provided in this document is correct and complete as of the date of disclosure;
- e) understands that TEPNG, its Affiliates and their co-venturers, as well as their concerned Affiliates, will be relying upon responses to this questionnaire and therefore will be sharing such information between and among each other in deciding whether or not to enter into a contractual arrangement and consents to such sharing (as well as with designated anti-corruption consultants or experts).

For the purpose of this Notice of Disclosure, **“Affiliate(s)”** means in relation to any company, at any time, any other entity:

- a) in which such company directly or indirectly controls more than fifty per cent (50%) of the registered capital or rights to vote; or
- b) which directly or indirectly controls more than fifty per cent (50%) of the registered capital or rights to vote of such company; or
- c) of which an entity as mentioned in b) here above controls directly or indirectly more than fifty per cent (50%) of the registered capital or rights to vote; or
- d) in which such company (or other legal entity) or any of its Affiliates, as defined under paragraphs (a) or (b) or (c) above, owns or controls, directly or indirectly, less than fifty percent (50%) of the outstanding stock carrying the right to vote or appoint directors at a general meeting of such company (or other legal entity) but in which said company or any of its Affiliates exercise a real supervision relating to the operations or the direction of such company (or other legal entity)

19 Certification

The undersigned, being a duly authorized representative, hereby certifies as follows:

All the information set forth in this questionnaire is correct and complete.

I understand that TEPNG will be relying upon the above information I have provided in deciding whether to enter into a contractual arrangement with my company.

If my company enters into an agreement with TOTAL E&P, I represent and agree that my company and its personnel will not offer, pay or give anything of value to a Public Official or any private person with a corrupt intent, in connection with any business covered by the contract between my company and TEPNG.

Signature: _____

Date: _____

Your Name: _____

Position: _____

TABLE 6

Conflict of Interests Questionnaire

- 1 Full name and address of the responding company (which sometimes is referred to in the questions that follow as “your company”):

Name: _____

Address: _____

Telephone: _____

Fax: _____

Email: _____

- 2 Registration number: _____

- 3 Does your company (or one of its AFFILIATES) own, directly or indirectly (including through its partnership to another entity) mining and/or hydrocarbons interests in the geographical area specified in the present INSTRUCTIONS TO TENDERER?

- 4 Has your company (or one of its AFFILIATES) got agreements with other entities aiming to acquire, directly or indirectly, mining and/or hydrocarbons interests in the geographical area specified in the present INSTRUCTIONS TO TENDERER?

- 5 Is your company (or one of its AFFILIATES) planning in its next twelve-month business plan to acquire, directly or indirectly, mining and/or hydrocarbons interests in the geographical area specified in the present INSTRUCTIONS TO TENDERER?

Notice of disclosure:

The information disclosed herein is collected by Total **E&P Nigeria** considering our potential business relationship. Any failure to provide complete answers to all the questions could delay or exclude your company from the bidder's list or short list on this contract. Further, the provision of incorrect or misleading information may prevent our establishing a business relationship with your firm.

Total **E&P Nigeria** will use such information, and may share it with other AFFILIATES and co-venturers (whose approval is necessary to enter into a contract with your company), in order to identify the existence or not of a conflict of interests between the activities of Total **E&P Nigeria** (and its AFFILIATES and co-venturers) and your company.

By signing this document, I, the undersigned [insert name] being duly authorized to respond to this questionnaire:

1. consent to the processing of such information for the purpose described in this notice; and
2. represent that the information provided in this document is correct and complete as of the date of disclosure; and
3. understand that **Total E&P Nigeria**, its AFFILIATES and co-venturers will be relying upon responses to this questionnaire and therefore will be sharing such information between and among each other in deciding whether or not to enter into a contractual arrangement and consents to such sharing.

For and on behalf of [name of TENDERER's legal entity]

Signature: _____

Date: _____

Your name: _____

Position: _____

For all queries relating to this questionnaire, please contact: <<insert name>>

Attachment 10 - EXCEPTIONS TO THE SPECIMEN CONTRACT – LEGAL/CONTRACTUAL

(To be submitted in Contractual Package)

Note: (If TENDERER has any exceptions, this document must be included in the Contractual TENDER Package only. Presence of this document in the Commercial TENDER Package could lead to rejection of the TENDER)

Specimen Contract Ref: XXXXXXXXX

Service to be provided: XXX

TENDERER's name:

(CONTRACTOR referred to as CTR) (COMPANY referred to as CPY)

No.	Article/Clause reference	Date	Comment by	Exception/Clarification	Status Closed/Open
1.			CTR		
			CPY		
2.			CTR		
			CPY		
3.			CTR		
			CPY		

Attachment 11 – TENDER TECHNICAL CONTENT

(To be submitted in Technical Package)

See documents attached - Scope of Service, Equipment List and Personnel - Appendix 1 - 3

Attachment 12 - QUALITY ASSURANCE / QUALITY CONTROL

(To be submitted in Technical Package)

TENDERER shall provide all information and documents related to QA/QC & Risks Management as required in section 7.2 Part 6 above and shall complete the following table referring to his own company-wide or corporate Quality Assurance (QA) and Quality Control (QC) policies and systems:

QUESTION:	ANSWER, COMMENTS, DATE OF IMPLEMENTATION
Has TENDERER developed a company quality policy that addresses quality assurance and quality control?	
Does TENDERER use the services of specialized consultants for developing, implementing and improving his company quality policy?	
Does TENDERER have and maintain a company Quality Manual and or a comprehensive suite of quality management system procedures?	
Does TENDERER have and maintain a company Quality Plan?	
Has TENDERER achieved company-wide ISO 9001:2000 certification, and who was the issuing authority? Specify any aspects of the company-wide services or business units that are not covered by this certification.	
When was TENDERER last audited by independent certifying authorities, and what findings, anomalies or non-conformances were raised?	
Is there a senior QA and/or QC manager within TENDERER's organisation, to whom does he report to, and what are the responsibilities and authority of this manager?	
If there is no QA/QC Manager, who fulfils this role?	
What other quality management initiatives, quality improvement programmes or quality related standards does the TENDERER's QA/QC system implement or comply with?	

Attachments to be provided:

- ▶ Policy statements with regard to QA/QC
- ▶ QA/QC organisation
- ▶ QA Manual summary
- ▶ Quality Plan summary
- ▶ Quality certificates (ISO , API ...)

Note: when TENDERER is a Consortium or any other association of companies as per Article 7.1 Part 4 of the present INSTRUCTIONS TO TENDERER, each partner or company of such Consortium shall submit his own responses to this table.

Attachment 13 - EXCEPTIONS TO THE SPECIMEN CONTRACT - TECHNICAL

(To be submitted in Technical Package)

Appendices/ Exhibits

Note: (If TENDERER has any exceptions, this document must be included in the Technical TENDER Package only. Presence of this document in the Commercial TENDER Package could lead to rejection of the TENDER)

Specimen Contract Ref: XXXXXXXXX

Service to be provided: XXX

TENDERER's name:

(CONTRACTOR referred to as CTR) (COMPANY referred to as CPY)

No.	Article/Clause reference	Date	Comment by	Exception/Clarification	Status Closed/Open
1.			CTR		
			CPY		
2.			CTR		
			CPY		
3.			CTR		
			CPY		

Attachment 14 - TENDERER HSE INFORMATION

See attached HSE guidance for additional information

(To be submitted in HSE Package)

Table 1 - HSE documents to be provided and their reference on TENDER CD/DVD

Subject	Description	PROVIDED		TENDERER's Document Reference number
		YES	NO	
Certification	TENDERER is requested to provide copies of all his valid certificates regarding HSE (ISO 14001, OSHAS 18001 and the like) from any authorized certifying authority such as BV, DNV or equivalent.			
Responsibilities	TENDERER shall provide his HSE manual including his HSE policy and objectives.			
	TENDERER shall provide his HSE organization documents showing his organization, responsibilities and authorities in HSE matters (organization charts, job descriptions and the like) proposed for the project.			
	TENDERER shall explain how he will ensure that the performance of SERVICES will comply with the COMPANY HSE MS, the HSE MS BRIDGING DOCUMENT and the HSE requirements of the CONTRACT.			
Risk Evaluation and Management	The following topics should be subject to adequate procedures included in the TENDERER's HSE-MS manual. TENDER shall briefly explain how he intends to be organized for: ▪ HAZID and risks assessment. ▪ Risk reduction and mitigation. ▪ Personnel involvement in HSE matter. ▪ Access to WORKSITE.			
	TENDERER shall provide a preliminary list of the main potential and/or specific risks which may affect or arise from his specific project activities on personnel health and safety, assets and the environment, local communities			

Subject	Description	PROVIDED		TENDERER's Document Reference number
		YES	NO	
	taking into account technical and local data.			
Respect of the Environment	TENDERER shall provide his environmental policy			
	TENDERER shall provide his Waste Management Plan			
Respect of communities	TENDERER shall explain how he will limit the socio-economic impact of the SERVICES on the local communities.			
	TENDERER shall propose an appropriate organization (human and means) to prevent, identify and control any related socio-economic incident.			
Safeguarding of Health	Safeguarding of personnel health should be dealt with as a paramount priority in TENDERER HSE-MS. TENDERER shall provide his procedures related to : ▪ Medical fitness. ▪ Medical evacuation ▪ Personnel protective equipment. ▪ Hazardous substance or materials management ▪ Food and hygiene. ▪ Driving policy ▪ Smoking, Drugs and alcohol policies			
SUBCONTRACTORS and Purchase Control	TENDERER shall explain his organization to control his SUBCONTRACTORS			
	TENDERER shall provide an example of bridging document prepared with SUBCONTRACTORS			
	TENDERER shall provide an example of a close out evaluation of SUBCONTRACTORS			
Competence and	TENDERER shall provide his organization for HSE training.			

Subject	Description	PROVIDED		TENDERER's Document Reference number
		YES	NO	
training				
	TENDERER shall provide his HSE training matrix			
Emergency preparedness	TENDERER shall provide a typical emergency response plan used on similar SERVICES			
	TENDERER shall explain how he will interface with COMPANY in case of emergency response plan			
Incident investigation	TENDERER shall briefly explain how the incidents are identified, reported, analyzed and actions plans are implemented			
	TENDERER shall provide two examples of recent incidents (accident or near miss) investigation reports.			
HSE improvement plan	TENDERER shall explain which proactive system he is using or he intends to use to improve involvement of personnel in HSE matters (incentive plan?)			
Security	TENDERER shall explain how he intends to manage the security at any location where the SERVICES are to be performed.			

The following information regarding the three past years as a minimum or more if available shall be provided.

HSE STATISTICS			
Provide Statistics for last three years	Year 1	Year 2	Year 3
Man hours			
Fatalities			
Major incidents			
MTC (Medical treatment cases)			
First aid cases			
LTI (Lost Time Incident)			
LTIF (Lost Time Incident frequency)			
TRIR (Total Reportable Incident Rate)			
EDI (Environmental Damage Incident)			
TENDERER's objectives	Year 1	Year 2	Year 3
LTIF			
TRIR			
TENDERER's safety reporting system	Year 1	Year 2	Year 3
Number of safety report and near miss reports			

Attachment 15 - EXCEPTIONS TO THE SPECIMEN CONTRACT – HSE

(To be submitted in HSE Package)

Appendices/ Exhibits

Note: (If TENDERER has any exceptions, this document must be included in the HSE TENDER Package only. Presence of this document in the Commercial TENDER Package could lead to rejection of the TENDER)

Specimen Contract Ref: XXXXXXXXX

Service to be provided: XXX

TENDERER's name:

(CONTRACTOR referred to as CTR) (COMPANY referred to as CPY)

No.	Article/Clause reference	Date	Comment by	Exception/Clarification	Status Closed/Open
1.			CTR		
			CPY		
2.			CTR		
			CPY		
3.			CTR		
			CPY		

Attachment 16 - EXCEPTIONS TO THE SPECIMEN CONTRACT – COMMERCIAL - Not Applicable

Attachment 17 – PRICES BREAKDOWN - NOT APPLICABLE

Attachment 18 - Contractor's Nigerian Content Detailed Execution Plan & Summary

1	Contractor Registered In Nigeria:	YES	NO
2	Alliances between Foreign/Multinational and Local Company	YES	NO
Total Employees		Nigerian Employees	
3	Total:		
	Only Local Employment:		
4	Contractor's Nigerian Personnel Training:		
5	Human Capacity Development (HCD)	10% of Project man-hours <u>or</u> 3000 man-hrs/year or 3% of Contract value whichever is greater	
6	List Nigerian Subcontractors (names)		
7	List Nigerian Sub suppliers (names)		
8	Nigerian Infrastructure (list with location and use)		
9	Nigerian Tools, Equipment, Machinery (list of main items)		
10	Specific activities to be performed in Nigeria (List of main activities)		
11	List of Products Procured in Nigeria		
12	NOGICD ACT Reference Description - Coiled Tubing Services	Propose NC % as per Schedule A of the NOGICD Act	UNIT (man-hour, spend, Tonnage)
	Coiled Tubing Services	75%	Man-hour
	others considered by Tenderer		

Attachment 19 - Nigerian Content Detailed information - Contractor Corporate Details

CONTRACT TITLE / Number:	
NAME OF CONTRACTOR (SIGNING BODY):	
HEAD OFFICE ADDRESS:	
CONTACT PHONE NUMBERS:	
E-MAIL:	
BRANCH OFFICE ADDRESS:	
NAME AND ROL OF PARTNERS	
CONTRACTOR OWNERSHIP /CONTROL	SHARES DISTRIBUTION
Name Local Owners:	% NIGERIAN SHARES / OWNERSHIP
Name Foreign Owners:	% FOREIGN SHARES / OWNERSHIP

Attachment 20 – CONTRACTOR'S NIGERIAN PERSONNEL TRAINING - IMPLEMENTATION TEMPLATE

TENDERERS are requested to execute an enforceable MOA with Local Training Service Provider for the provision of training services in specific technical disciplines involved in the project. Provide a project-specific training, man-hour budget, skill development and technology transfer plan for Nigerian personnel or indigenous business including evidence of past performance on training and development for Nigerians nationals & indigenous business. Plan for sponsorship of Nigerians to acquire competence and/or certification.

Items	positions & categories (i.e. key & non-key) deployed directly on contract (including all mgt, key & non-key job positions held by foreign nationals)	Nationality of nominated personnel holding job positions on the contract	No. Of training candidates proposed for job positions (Nigerian nationals)	Qualification and level of competence or job knowledge required for job position	For the job positions held by non-national employees list competency gaps of national employees	Describe qualification, certifications and level of competence or specific gap closures to be achieved through training	Total man-hours to be committed to training

Attachment 21 – DETAILED LIST OF PERSONNEL POSITIONS FOR THIS SERVICE

Item no.	list of all job positions & categories (i.e. key & non-key) deployed directly on contract	no. of personnel in job category deployed (Nigerian nationals)	no. of personnel in job category deployed (foreign nationals)
1			
2			
3			
4			
5			

Attachment 22 – PROCUREMENT OF GOODS

TENDERERS shall submit binding memorandum of agreement (MOA) with Nigerian manufacturers of goods and finished products. Submit the list of goods, products, raw materials & chemicals and equipment of Nigerian origin to be procured & used in the execution of this contract.

Item no.	List of all spare parts, bulk materials, consumables, finished goods & equipment to be procured on the contract	State if procured items are manufactured or fabricated or assembled in Nigeria or imported product	Name & address of manufacturing or fabricating or assembly industry in Nigeria	For imported items state if item is a direct import or procured through local agent or supplier	Name & address of local agent or vendor	Percentage (%) weight of item in total procurement value inside contract
						This column (% weight of item in total procurement value inside contract to be provided at STAGE 2 of the TENDER "commercial")

Attachment 23 – SERVICES, SUB-CONTRACTS & 3RD PARTY SERVICES

Item No.	LIST & DESCRIPTION OF ALL SERVICES & SUB CONTRACTS	NAME & ADDRESS OF SUPPLIER OF SERVICES (.i.e. bidder, vendor, subcontractor, 3rd party, etc.)	BINDING AGREEMENT AVAILABLE (YES/NO?)

Attachment 24 – HUMAN CAPACITY DEVELOPMENT (HCD)

Training Scope / Descriptive	Duration	No of Trainees	Man Hours	Entry Requirements / Disciplines	Selection Criteria	Schedule (Start – End)	Certification	OJT / Integration Plan

Note – the HCD training is separate from and in addition to that of CONTRACTOR workforce

Enclosure 1 – “TOTAL Code of Conduct”

